IN THE NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH
COURT NO. 1

ITEM No.2

CA(CAA)/8(MP)2023

Proceedings under Section 230-232

IN THE MATTER OF:

Navurja Dairy Products Pvt Ltd
(Transferor Company)
Siddharth Kapoor Ventures Pvt Ltd
(Transferee Company) **.....Applicants**

Order delivered on 22/12/2023

Coram:

P. Mohan Raj, Hon'ble Member(J)
Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order.

The order is pronounced in open Court *vide* separate sheet.

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KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

P. MOHAN RAJ
MEMBER (JUDICIAL)

A. Bhadauria

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH

CA(CAA)/08/MP/2023

(An Application filed under Section 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016)

In the matter of:

Navurja Dairy Products Private Limited
CIN: U15130MP2018PTC045144
Having its registered office at:
E-3/10, Nupur Kunj Area Colony,
Bhopal,
Madhya Pradesh- 462016

……Applicant/Transferor Company

Siddharth Kapoor Ventures Private Limited
CIN: U45203MP2007PTC019664
Having its registered office at:
468, Omex One, Indore Dewas
Bypass Road, Mayakhedi,
Indore,
Madhya Pradesh- 452016

……Applicant/Transferee Company

Order pronounced on: 22.12.2023

Coram: P. Mohan Raj, Member (J)
Kaushalendra Kumar Singh, Member (T)

Appearance:

For the Applicant Companies: Ld. PCS Mr. Vinit Nagar

ORDER

1. This joint application is filed by the applicant companies namely M/s Navurja Dairy Products Private Limited (Applicant Transferor Company) and M/s Siddharth Kapoor Ventures Private Limited (Applicant Transferee Company) under section 230-232 of the Companies Act, 2013 (the Act), read with Companies (Compromise, Arrangements, and Amalgamations) Rules, 2016, for dispensation of meetings of shareholders of both the applicant companies, secured and unsecured creditors of applicant transferor company, for considering and approving with or without modification, a composite scheme of amalgamation.

2. The registered office of the applicant companies is situated in the state of Madhya Pradesh and is under the jurisdiction of the National Company Law Tribunal, Bench in Indore.

3. Applicant Transferor company is a private limited company having CIN No. U15130MP2018PTC045144, incorporated under the provisions of the Companies Act, 2013 on 27.02.2018, and its registered address is at E-3/10, Nupur Kunj Area Colony, Bhopal, Madhya Pradesh- 462016. The applicant transferor company is carrying on the business of dairy processing. The Authorized Share Capital of the applicant transferor company is Rs 4,98,00,000/- and its Issued and Subscribed Share Capital is Rs 1,66,11,920/-.

4. Applicant Transferee company is a private limited company having CIN No. U45203MP2007PTC019664, incorporated under the provisions of the Companies Act, 1956 on 11.07.2007, and its registered address is at 468, Omex One, Indore Dewas Bypass Road, Mayakhedi, Indore, Madhya Pradesh-452016. The applicant transferee company is carrying on the business of infrastructure development. The Authorized Share Capital of the applicant transferee company is Rs 9,95,00,000/- and its Issued and Subscribed Share Capital is Rs 9,95,00,000/-.

5. Submissions made by the applicant companies in its application and presented by the learned counsel are summarized here as under:

(i) The purpose of this scheme of arrangement is for:

(a) Combining the business interest into a single entity and achieving a simplified corporate structure under the common management structure.

(b) Reducing the number of entities in the group thereby reducing managerial overlaps.

(c) Reducing the regulatory and legal compliances including accounting, reporting requirements, etc., and consequential reduction in administrative costs.

(ii) The Board of Directors of the applicant companies in their respective Board meeting held on 20.07.2023 passed a resolution for preparation of the proposed scheme of merger as placed before the Board. The applicant companies have filed the scheme and its audited balance sheets, the same is placed on record.

(iii) The accounting treatment proposed in the scheme of arrangement is in conformity with the accounting standards prescribed under section 133 of the Companies Act, 2013. The certificate from the respective statutory auditor of the applicant companies has been filed along with the application.

(iv) No investigation or proceedings under the Companies Act, 1956/2013 have been instituted or pending in relation to the applicant companies.

(v) There is no specific sectoral regulator or authority governing the business of the applicant companies which are likely to be affected by the proposed scheme of arrangement.

(vi) There will not be any adverse implications affecting the Competition in the Industry. Further, the provisions of the Competition Act, 2002 are not applicable in the present case, and therefore no notice is required to be served to the Competition Commission of India.

6. The learned counsel of the applicant companies submitted that as per the audit report placed on record by the applicant companies, the details of shareholders, secured creditors, and unsecured creditors are as follows:

(i) The applicant transferor company has 3 shareholders.

(ii) The applicant transferee company has 4 shareholders.

(iii) The applicant transferor company does not have any secured or unsecured creditors.

(iv) The applicant transferee company has 3 secured creditors amounting to Rs 27,42,75,055/-.

(v) The applicant transferee company has 1 unsecured creditor amounting to Rs 8,39,68,863/-.

7. The learned counsel seeks directions with respect to the dispensation and convening of the meetings of the creditors and shareholders of the applicant companies as under:

(i) The meetings of the shareholders of both the applicant companies may kindly be dispensed with, in view of the consent affidavit received from all the shareholders of both the applicant companies.

(ii) The meetings of secured and unsecured creditors of the transferee company may kindly be dispensed with in view of the consent affidavit received from all the creditors of the applicant transferee company.

(iii) Since there are no secured and unsecured creditors in the applicant transferor company, therefore the requirement for convening the meetings is not applicable in the present case for the applicant transferor company.

8. On perusal of the records and submission made by the learned counsel of the applicant companies, it is noted that there are no secured or unsecured creditors in the applicant transferor company as per the CA certificate, and consent affidavit from shareholders of both the applicant companies and secured and unsecured creditors of the applicant transferee company are

received and the same is placed on record. As a result, no meeting of secured creditors and unsecured creditors of the applicant transferor company is required, as there are no secured and unsecured creditors in the applicant transferor company. Further, the meetings of the shareholders of both the applicant companies and secured creditors and unsecured creditors of the applicant transferee company are dispensed with as the consent has been received from them.

9. This Tribunal, therefore, directs in compliance with sub-section (5) of section 230 and Rule 8 of the Companies (CAA) Rules, 2016, the applicant companies shall send a notice in Form No. CAA 3 along with disclosures mentioned under Rule 6 to, (i) the Central Government through the Regional Director, North-Western Region, (ii) the Registrar of Companies, Gwalior, (iii) Official Liquidator, and (iv) the Income Tax Authorities concerned, stating that the representation, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make on the proposed scheme. The said notices shall be sent forthwith by registered post or by speed post or by courier or by hand delivery or by e-mail at the office of the authority as required by sub-rule (2) of Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities, who desire to make any representations under sub-section (5) of section 230 of the Act, shall send the same to the Tribunal within a period of 30 days from the date of receipt of such notice, failing which, it will be deemed that they have no representation to make on the proposed arrangement.

10. With the above directions, CA(CAA)/08/MP/2023 is allowed and disposed of.

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KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

P. MOHAN RAJ
MEMBER (JUDICIAL)

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